

JUSTIFICATION AND APPROVALS FOR OTHER THAN FULL AND OPEN COMPETITION

Birth Records Certification

1. Identification of the agency and contracting activity.

The U.S. Department of Defense, Defense Counterintelligence and Security Agency (DCSA) Contracting and Procurement Office, proposes to enter into a contract on a basis of other than full and open competition for the DCSA Federal Investigative Records Enterprise (FIRE).

2. The nature and/or description of the action being approved. (i.e., sole source, limited competition, establishment of a new source, etc.)

The Government has a requirement to procure a follow-on contract for birth records from the National Association of Public Health Statistics and Information Systems (NAPHSIS). The contract will be a sole source acquisition under the authority of Federal Acquisition Regulation (FAR) 6.302-1(a)(2)(ii) and the procedures of FAR Parts 12 and 15 will be used. The purpose of this document is to obtain necessary approvals for the sole source acquisition of birth records certification and verification as competition is limited to only one responsible source, NAPHSIS, and no other supplies or services will satisfy DCSA requirements.

3. A description of the supplies or services required to meet the agency's needs (including estimated value).

The requirement is to provide birth record certifications in connection with background investigations, as required by Federal Investigative Standards and the Federal Personnel Vetting Standards. The current contract, contract number HS0021-20-C-0006, is a five-year, Firm Fixed Price (FFP), commercial contract with a total value of [REDACTED], which was procured on a sole source basis. The follow-on contract will include a 12-month base period, plus nine 12-month optional periods for a total of 120 months. The estimated cost for the base period is [REDACTED] and the estimated cost for the total contract lifecycle (base period and nine 12-month option periods) is [REDACTED].

DCSA is contemplating a ten-year contract for birth records. In accordance with FAR Part 2, electronic birth records fit within the definition of Information and Communication Technology (ICT), and the following provides a detailed justification.

a. FAR 17 (Special Contracting Methods) limits multiple year contracts to 5 years for supplies and services except for information technology contracts. FAR 39 (Acquisition of Information Technology) is applicable to "information technology" and "information and communication technology". FAR 2 (Definitions of Words and Terms) defines ICT as "...information technology and other equipment, systems, technologies, or processes, for which the principal function is the creation, manipulation, storage, display, receipt, or transmission of electronic data and information, as well as any associated content."

The definition gives the specific example of “electronic documents” being considered ICT.

b. The Government’s requirement is to procure birth records from NAPHSIS. The birth records are electronically collected from State and City Governments and stored by NAPHSIS and then provided to the Government via NAPHSIS secure system. These birth records meet the definition of ICT as they are electronic documents which are received, stored, and transmitted within a system.

c. The birth records also meet the definition of information technology as data or information is transmitted to and received by the agency by a contractor under contract with the agency for its use in the performance of a service or the furnishing of a product.

The requirement entails DCSA having access to vital data using a single interface system. DCSA must be able to generate a request for vital records data from an interface for all available vital records data. The request will generate an XML message in a standardized format that a system will route to the jurisdiction where the event took place. The system must then provide an XML message in response that can be ingested by DCSA systems.

Vendor will:

- a) Provide an Internet-based XML System Electronic Verification of Vital Events (EVVE) for DCSA to confirm vital records data.
- b) Provide DCSA with the requirements/code, technical information, and technical assistance needed to update XML transactions, potential error messages, and interpretation matrix of error messages.
- c) Provide DCSA the functional requirements/code for routing the request and response messages.
- d) Provide DCSA with an itemized invoice.
- e) Maintain continuous DCSA access to the hub and access to databases.
- f) Provide maintenance support and notify the users of any unscheduled maintenance.
- g) Ensure the EVVE hub and databases are inaccessible for no more than one business day through the period of performance.

This will allow the DCSA FIRE to accomplish its mission of providing timely records checks to ensure the completion of timely background investigations.

4. Contract Lifecycle Costs.

IGCE	PoP Start	PoP End	Dollar Value
Base Year	4/1/2025	3/31/2026	
Option Period 1	4/1/2026	3/31/2027	
Option Period 2	4/1/2027	3/31/2028	
Option Period 3	4/1/2028	3/31/2029	
Option Period 4	4/1/2029	3/31/2030	
Option Period 5	4/1/2030	3/31/2031	
Option Period 6	4/1/2031	3/31/2032	
Option Period 7	4/1/2032	3/31/2033	
Option Period 8	4/1/2033	3/31/2034	
Option Period 9	4/1/2034	3/31/2035	
Total Contract Value			

The above table provides a breakout of estimated costs for projected caseloads for FIRE, and the total contract value will be definitive once a proposal from NAPHSIS has been received.

5. Identification of the statutory authority permitting other than full and open competition.

The statutory permitting other than full and open competition is 10 U.S.C 3204(a)(1) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1(a)(1) and will follow the procedures of FAR Parts 12 and 15. The sole source justification will follow the format of FAR 6.303-2 and approvals will be in accordance with (IAW) FAR 6.304.

6. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

NAPHSIS is uniquely qualified to provide birth record checks and verifications to FIRE because of the immediate responsiveness of the NAPHSIS EVVE system. The EVVE system, owned and operated by NAPHSIS, allows immediate confirmation of the information on a birth certificate of date and place of birth information presented by the person who is the subject of a DCSA background investigation by comparison of that submitted information with official vital records information maintained by government offices anywhere in the nation, regardless of the place or date of issuance.

NAPHSIS is the national non-profit organization representing the state and local vital records and public health statistics offices in the United States. The EVVE system provides vital records data from 57 jurisdictions, which includes 50 states, 5 territories, the District of Columbia (D.C.), and New York City. With the EVVE system, authorized users can submit an electronic query to any participating vital records jurisdiction throughout the country to request an electronic certification (in lieu of the paper birth certificate). A real-time,

electronic response from the participating vital records jurisdiction either verifies or denies a match with their official records. The EVVE system [REDACTED]

This information is vital to the mission of DCSA in the completion of background investigations for the departments and agencies of the federal government. Background investigations are conducted by DCSA, on Federal employees, contractor personnel, military personnel, and on applicants for those positions, so that U.S. Federal agencies determine whether the individual is suitable for Government employment, entry into the U.S. military, eligible for logical and physical access to Federal systems or facilities, eligible for access to classified information, eligible to be appointed to a sensitive position, or fit to perform work on behalf of the Government as contractor personnel. With NAPHSIS' EVVE system, an authorized user is able to generate an electronic query to any vital records office throughout the country and the user will be provided an immediate response. DCSA personnel have successfully used the EVVE system to verify birth records since 2009. *The functions, personnel, and resources of the National Background Investigations Bureau, which formerly operated as a component of the US Office of Personnel Management, were transferred to DCSA, effective October 1, 2019, in accordance with directions in Executive Order 13869.*

7. A description of the market research conducted (FAR Part 10) and the results or a statement of the reason market research was not conducted.

The resources utilized in performing market research were the evaluation of potential Contractor websites, the incumbent contractor, its closest known competitor, and the posting of a Sources Sought Notice (SSN). The SSN requested that potential Contractors address the five following competencies:

- a) Describe your experience and ability to conduct records verifications in support of background investigations for the departments and agencies of the federal government.
- b) Describe your ability to provide access to the EVVE application for vital record information via a web service or website.
- c) Describe your experience and ability in fulfilling electronic records requests that will be sent to Vendor daily.
- d) Describe your experience and process for returning birth certification/verification result immediately for a minimum of 50 state/territory electronically.
- e) Describe your experience and process providing access to website for

jurisdictions that require manual birth certification/verification queries.

The SSN was publicly posted on December 2, 2024, and vendors were allowed to submit responses until December 27, 2024. Seven total responses were received.

Three responses were received [REDACTED] and they were company summaries that provided basic information about the company, and did not attempt to address any of the capability requirements noted in the SSN; therefore, they were not considered.

One response [REDACTED] provided a four-page company overview; however, the response did not identify how the vendor could satisfy the DCSA requirements; therefore, it was not considered.

Two responses [REDACTED] attempted to address the competencies outlined in the SSN; however, after review, DCSA determined that while both vendors believe that they can meet the needs, they do not have a current connection to the EVVE website, or experience requesting/returning birth certifications. [REDACTED] indicated that once the EVVE endpoints are defined, they “will work with DCSA to determine the specific rules and workflows needed for each territory”—this response in addition to the response provided for Competency “e” demonstrates a lack of understanding of the EVVE system and its current capabilities and connections to the various jurisdiction level vital records systems.

Finally, one response was received from NAPHSIS. The NAPHSIS response confirms, that NAPHSIS can deliver all five competencies that were listed in the SSN as stated in section 6. The EVVE System was developed by NAPHSIS to provide authorized and credentialed government agencies, as well as authorized and credentialed non-government entities, a way to submit a single query for matching against vital records birth and death databases. The EVVE software is owned and trademarked by NAPHSIS. NAPHSIS is the sole provider. NAPHSIS does not have any resellers for the EVVE system.

Additional market research was conducted on [REDACTED], which provides a similar product to the NAPHSIS EVVE system. This was done to determine if [REDACTED] would be capable of providing the same or similar product as the NAPHSIS EVVE birth certificate product. After review, DCSA determined that the [REDACTED] product is not automated, requests are not sent electronically, and results are not received electronically. In addition, the [REDACTED] birth certificate verification does not provide an immediate response and the cost of the [REDACTED] product is significantly higher.

8. Any other facts supporting the use of other than full and open competition.

NAPHSIS is a national non-profit organization that represents the state vital record and public health statistics offices through the United States. NAPHSIS focuses on protecting vital records in all 50 states, five territories, New York City, and the District of Columbia. The NAPHSIS' EVVE system verifies identity quickly by matching against the United States birth certificate databases. They are the only vendor that is capable of meeting the Government's requirement because the EVVE System was developed by NAPHSIS to provide authorized and credentialed government agencies, as well as authorized and credentialed non-government entities, a way to submit a single query for matching against vital records birth and death databases. The EVVE software is owned and trademarked by NAPHSIS. NAPHSIS is the sole provider and does not have any resellers for the EVVE system.

Birth certification is one of many points of information that DCSA must verify in the process of performing background investigations. In the event this justification is not approved, the Government risks delaying the processing time of background investigations. The Intelligence Reform and Terrorism Prevention Act (IRTPA) (Public Law 108-458 Dec 17, 2004) requires DCSA to complete "Secret" level cases in 40 days and "Top Secret" level cases in 80 days. DCSA must use the vendor that can provide birth record certifications with the fastest response time to have the best chance of meeting the statutorily mandated timeliness requirements.

In conclusion, it is in the best interest of the Government to award a sole source contract to NAPHSIS. If the Government were to compete and award to another vendor it would incur higher costs because vendors will have to pay to gain access to NAPHSIS' EVVE System as well as have to negotiate pricing with the two jurisdictions that do not participate in the EVVE System, resulting in significantly higher pricing.

9. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

The SSN was posted to beta.SAM.gov on December 2, 2024, requesting that parties express their interest in writing to the Contracting Officer. The following vendors expressed interest, in writing, by responding to the SSN. However, based on the vendor responses, NAPHSIS was the only vendor deemed capable.

1. [REDACTED]
2. [REDACTED]
3. [REDACTED]
4. [REDACTED]
5. [REDACTED]
6. [REDACTED]
7. NAPHSIS

10. Description of Efforts.

The resources utilized in performing market research were the evaluation of potential Contractor websites, the incumbent contractor, its closest know competitor, and the posting of a Sources Sought Notice (SSN). The SSN requested that potential Contractors address the five following competencies:

- a) Describe your experience and ability to conduct records verifications in support of background investigations for the departments and agencies of the federal government.
- b) Describe your ability to provide access to the EVVE application for vital record information via a web service or website.
- c) Describe your experience and ability in fulfilling electronic records requests that will be sent to Vendor daily.
- d) Describe your experience and process for returning birth certification/verification result immediately for a minimum of 50 state/territory electronically.
- e) Describe your experience and process providing access to website for jurisdictions that require manual birth certification/verification queries.

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Once the vendor submissions were reviewed and it was determined NAPHSIS was the only source capable of meeting the Government's requirement, a Notice of Intent to Sole Source was posted on SAM.gov on 10 Jan 2025.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required, if subsequent acquisitions are anticipated.

DCSA will continue to survey the marketplace by synthesizing its requirement and reviewing product literature and capability statements submitted by the vendor community prior to any future procurement for birth verifications.

Certification

Program Official:

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

 Digitally signed by
Date: 2025.03.06 13:37:30 -05'00'

Program Official

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

 Digitally signed by
Date: 2025.03.06 16:46:54 -05'00'

Contracting Officer

Reviews and Approvals

(See FAR 6.2, 6.3 and 6.5; DFARS 206.304; and PGI 206.304 for review and approval requirements under specific circumstances)

Program Senior Official (or designee):

I certify that the facts and representations under my cognizance, which are included in this justification, and which form a basis for this justification, are complete and accurate.

 Digitally signed by
Date: 2025.03.07 08:34:55 -05'00'

Program Senior Official (or designee)

Advocate for Competition (if over \$750K):

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this JOFOC does not exceed \$15M, this review serves as approval.

 Digitally signed by
Date: 2025.03.07 08:51:11 -05'00'

Advocate for Competition